Subscription Agreement

Never Miss a Lead · Smart Text plan

Parties

SUPPLIER ("BIG BARK MEDIA", "WE")

Ogilvie Dogs Ltd, trading as Big Bark Media, a company registered in England and Wales with company number 10838005, whose registered office is at C/O TaxGem Ltd, 67 Hough Lane, Leyland, England, PR25 2SA (trading address: Isla Farm, 4 North Drove, Bourne, Lincolnshire, PE10 0BJ). VAT number: GB385496934 (all prices include VAT). Email: info@bigbark.media.

CLIENT ("YOU")

The business that starts a subscription or free trial for the Service, as named in its sign-up (Stripe checkout) and onboarding form, at the address and email given there.

Start date: the date your subscription or free trial starts.

Key terms at a glance

Plan and price	Smart Text: £99/month (£79/month for Big Bark hosting clients) or £990/year. All prices include VAT.
Trial	14 days free from the day your Number goes live, card required; cancel before it ends and pay nothing.
Setup and support	We set up behind the scenes; you finish setup with our guides and videos. Support by email or WhatsApp only.
Commitment	None. Rolling monthly; pause (up to 3 months, free, once a year) or cancel yourself in the Dashboard, with effect from the end of the paid period.
Billing	Update your card, see invoices or cancel through the Stripe billing page linked from the Dashboard.
Data	You are controller, we are processor (Schedule 2). Message contents, voicemails, AI transcripts and summaries are deleted after 12 months. We keep a basic log of calls (number, time, outcome) while you're a client, for billing and support.
Liability cap	Fees paid in the previous 12 months (clause 19).

1. Definitions and interpretation

1.1 In this Agreement:

(a) **"Agreement"** means these terms, the Plan Schedule (Schedule 1) and the Data Processing Schedule (Schedule 2);

(b) **"Business Day"** means a day other than a Saturday, Sunday or bank holiday in England;

(c) **"Callers"** means people who call, text, send WhatsApp messages to or submit the website form to the Client through the Service;

(d) **"Dashboard"** means the online dashboard at my.bigbark.media (or any replacement address we tell you about);

(e) **"Fees"** means the subscription fees, any setup fee and any usage charges set out in the Plan Schedule;

(f) **"Number"** means your Never Miss a Lead number: the UK telephone number we provide for the Service, to which your mobile diverts calls you do not answer (and, if your phone cannot divert, which you may publish so callers ring it directly); **"Numbers"** means any such numbers;

(g) **"Service"** means the Never Miss a Lead Smart Text service described in clause 3 and the Plan Schedule;

(h) **"Third-Party Providers"** means the providers we use to deliver the Service, listed in clause 12;

(i) **"Trial"** means the free trial described in clause 4;

(j) **"we", "us", "our"** means Big Bark Media (as identified above) and **"you", "your"** means the Client.

1.2 Headings do not affect interpretation. "Including" means "including without limitation". A reference to a law includes that law as amended or replaced. If there is a conflict, Schedule 2 prevails on data protection matters, then the Plan Schedule, then these terms.

1.3 This Agreement is between businesses. You confirm you are entering into it for the purposes of your trade, business or profession and not as a consumer.

2. How this Agreement is formed

2.1 This Agreement is formed, and you accept it, when you start a subscription or Trial for the Service (for example by completing our Stripe checkout for the Service), or when you sign the acceptance block at the end, whichever happens first. We will email you a copy.

2.2 If you accept on behalf of a company or other organisation, you confirm you are authorised to do so.

2.3 We may refuse or end a sign-up before the Service goes live if we cannot complete the identity and business checks that our telephone provider is required to carry out under Ofcom rules, or if we reasonably believe the Service would be used in breach of clause 10. In that case we will refund anything you have paid for the Service.

3. The Service and setup

3.1 We will provide the Service described in the Plan Schedule with reasonable skill and care. In summary: when you cannot answer a call, the caller hears your greeting, can leave a voicemail and (if they called from a UK mobile number) receives an automatic text from your business; you receive an alert; and you can see and reply to conversations in the Dashboard or by text. On your plan, an AI assistant can also reply to Callers' texts and WhatsApp messages using the business information you provide.

3.2 Setup is done by us behind the scenes and by you with our written guides and setup videos. We will:

(a) register and verify your Number (the identity and business checks our telephone provider must carry out under Ofcom rules normally take a few Business Days after we receive the information we need);

(b) write your automatic text and the business information used by the AI features from your onboarding form;

(c) set up your WhatsApp Business profile, if you chose WhatsApp;

(d) install the website button on websites we host for you; and

(e) email you when your Number is live ("You're live on Never Miss a Lead"), with your Number, your call divert codes and links to the Dashboard and the setup videos.

3.3 You are responsible for the remaining setup steps, which our guides and videos explain: signing in to the Dashboard, turning on alerts (including phone notifications if you want them), setting your call diverts

and testing them, and checking your business information. Setup does not include phone calls, visits or remote sessions with us; help is available as described in clause 17.

3.4 WhatsApp is an optional part of the Service that we set up for you behind the scenes (clause 12). It depends on approval by Meta and is not available until that approval is given. We may make changes to the Service that do not materially reduce it (for example improvements, security fixes, or changes needed because of a Third-Party Provider or the law).

3.5 The Service sends texts only to UK mobile numbers. Callers who use a landline, withhold their number or have a non-UK number do not receive automatic texts. The Service is designed for replying to people who have contacted you; it does not send marketing or bulk messages, and you must not try to use it for that.

4. Free trial

4.1 New subscriptions start with a 14-day free Trial unless you choose to start straight away. No setup fee is charged for a subscription that starts with a Trial.

4.2 The Trial starts on the day your Number goes live (the day we send you the "You're live on Never Miss a Lead" email), not the day you sign up, and lasts 14 days. We will email you about 3 days before it ends.

4.3 A payment card is required to start the Trial. Nothing is charged during the Trial. If you do not cancel before the Trial ends, your subscription continues automatically and the first monthly Fee is charged at the end of the Trial.

4.4 To avoid any charge, cancel before the Trial ends (clause 6.3); nobody is charged for a Trial cancelled in time.

4.5 We may offer only one Trial per business.

5. Fees, billing and payment

5.1 The Fees are set out in the Plan Schedule. Prices are stated in pounds sterling and **include VAT** at the standard rate. Our VAT number is GB385496934 and is shown on every invoice. If the rate of VAT changes, we may adjust the Fees to reflect the change from the date it takes effect.

5.2 Monthly subscriptions are billed monthly in advance; annual subscriptions are billed yearly in advance. Payment is taken automatically by card (or another method we agree) through our payment provider, Stripe, on each billing date. You authorise us to take these payments.

5.3 If you choose to start without a Trial, the one-off setup fee shown in the Plan Schedule is charged with your first payment. The setup fee is non-refundable once we have started setting up your Number.

5.4 The hosting-client price applies only while we host your website under a separate agreement. If that hosting ends, the standard price applies from your next billing date, and we will tell you before it changes.

5.5 If a payment fails, our payment provider may retry it and we will email you. The consequences of non-payment are in clause 18. You must keep your payment details up to date, which you can do yourself through the secure billing page linked from the Dashboard (Settings, "Billing and plan", provided by Stripe), where you can also see your invoices.

5.6 You may not withhold or set off any amount against the Fees, except as required by law.

6. Term, pausing and cancellation

6.1 This Agreement starts when it is formed (clause 2) and continues until ended under this clause or clause 20.

6.2 Monthly subscriptions roll on from month to month. There is no minimum term and no lock-in.

6.3 You can cancel at any time yourself in the Dashboard (Settings, "Billing and plan", "Cancel my plan"), or by telling us by email to info@bigbark.media or by WhatsApp to 07822 882162. Cancellation takes effect

at the end of the billing period you have already paid for (or at the end of the Trial); we do not refund part-periods, and you will not be charged again. If you cancel during the Trial, you will not be charged at all. We will email you to confirm the date your plan ends and how to remove your call diverts (clause 11.3). Until that date you can withdraw the cancellation in the Dashboard ("Undo cancellation").

6.4 Annual subscriptions run for the year paid for. If you cancel an annual subscription, the Service continues to the end of the paid year and is not renewed. We don't give partial refunds.

6.5 We may end this Agreement for convenience by giving you at least 30 days' written notice, in which case we will refund any Fees you have paid in advance for the period after it ends.

6.6 Pausing: on a monthly subscription you may pause the Service yourself in the Dashboard (Settings, "Billing and plan", "Pause my plan") for 1, 2 or 3 months, free of charge, once in any rolling 12 months. You cannot pause during a Trial, while a cancellation is scheduled, or on an annual subscription. No Fees are charged for the paused period. While the Service is paused:

(a) calls still ring your mobile as normal; Callers whose calls are diverted to the Service hear your greeting and can leave a voicemail, which is recorded and emailed to you;

(b) texts, WhatsApp messages and website enquiries are stored and notified to you by email (and by phone notification where you have turned these on), and you can still reply manually through the Dashboard or by #code text;

(c) no automatic texts, AI replies or text alerts are sent.

6.7 A pause ends automatically on the date shown when you pause (we email you about 3 days before), or earlier if you choose "Resume now" in the Dashboard. Billing restarts when the Service resumes.

6.8 When you start to cancel, we may at our discretion offer you something to stay, such as a discount on your next few monthly Fees or a pause. Any such offer is optional, is not a contractual right, may be changed or withdrawn at any time, and applies only on the terms shown when you accept it.

6.9 You can move to a different Never Miss a Lead plan by asking us by email or WhatsApp; we normally make the change the same day (plan changes are not available on the billing page). The new plan's Fees apply from the date we make the change (or your next billing date, if we agree), and the terms for that plan apply from then.

7. Changes to prices and these terms

7.1 We may change the Fees by giving you at least 30 days' notice by email. The change applies from your first billing date after the notice period ends. For annual subscriptions, a change applies from your next renewal.

7.2 We may update these terms by giving you at least 30 days' notice by email, except that changes required by law or by a Third-Party Provider may take effect sooner if necessary.

7.3 If you do not agree to a change, you may cancel before it takes effect and it will not apply to you.

8. 30-day lead guarantee

8.1 The 30 days start on the day your number goes live. If we don't recover at least one enquiry for you in those 30 days, ask us and your next month is free. "Recovered" means a missed caller replied to our text, or (on Smart Text and AI Receptionist) the AI took their details. Opt-outs (STOP) and test calls don't count. Ask by email or WhatsApp within 14 days of the 30 days ending. Once per business.

8.2 A free month means we do not charge the subscription Fee for your next monthly billing period; it is not a cash refund. The guarantee assumes your call diverts are set up as described in our guides.

9. Your responsibilities

9.1 You must:

(a) use the Service lawfully, including in line with the Privacy and Electronic Communications Regulations 2003 (PECR), UK GDPR and the Data Protection Act 2018;

(b) use the Service only to reply to people who have contacted you (by phone, text, WhatsApp or your website form) about their enquiry, and not to send marketing, promotional or bulk messages, or to message people who have not contacted you;

(c) respect opt-outs: if a person replies STOP or otherwise asks not to be contacted, stop texting them, including from your own phone;

(d) keep the business name in your automatic text and keep the opt-out wording (the Dashboard requires both);

(e) add the privacy wording we supply (or equivalent) to your website's privacy policy, and give Callers any other information the law requires;

(f) keep the business information used by the AI features (Settings, "What the AI knows about your business", in the Dashboard) accurate and up to date (services, prices, areas, policies), and not include information you would not want shared with Callers, personal data about other people, or special category data such as health information;

(g) check the AI's replies regularly, in particular when you first start, and pause or correct it where its replies are not appropriate (clause 13);

(h) pause the AI on a conversation (using "Pause AI" in the Dashboard) before you contact that Caller outside the Service, for example from your own phone, because the AI cannot see contact made outside the Service;

(i) set up and keep in place the call divert settings we give you on your mobile, and tell us promptly if you change your mobile number, network or SIM;

(j) keep your Dashboard sign-in email account secure, tell us promptly about anyone who should no longer have access, and be responsible for everything done through your Dashboard access and from your registered mobile number;

(k) give us accurate business information, including the information our telephone provider needs for its identity checks under Ofcom rules, and tell us promptly if it changes;

(l) respond to Callers yourself: the Service helps you capture and reply to enquiries, but the relationship with your customers, and any advice, quotes or bookings, are yours.

9.2 You are responsible for the content of messages you send through the Service, for your automatic text and greeting wording, and for any charges your own mobile network makes (for example for diverted calls or for texts you send to use the #code reply feature).

10. Acceptable use

10.1 You must not use the Service, or allow it to be used:

(a) to send unsolicited marketing, spam, chain messages or bulk messages, or to message purchased or scraped lists of numbers;

(b) for anything unlawful, fraudulent, harassing, threatening, defamatory, obscene or discriminatory, or that infringes anyone's rights;

(c) to impersonate another person or business, or to mislead people about who is contacting them;

(d) to collect payment card details, passwords or special category data by text or WhatsApp;

(e) in breach of the rules of our Third-Party Providers (including Twilio's Acceptable Use Policy, Meta's WhatsApp Business policies and the usage policies of our AI providers);

(f) to try to get round the Service's limits, opt-out handling or security, or to interfere with or reverse-engineer the Service.

10.2 If we reasonably believe the Service is being used in breach of this clause, we may suspend all or part of it immediately (clause 18) and, where appropriate, end this Agreement (clause 20). We will tell you why unless the law prevents us.

11. Phone numbers and call diverts

11.1 We provide your Numbers through our telephone provider (Twilio). The Numbers are allocated to us for use in providing the Service to you; you may use them for your business while this Agreement continues. We may need to change a Number if our provider or a regulator requires it, in which case we will give you as much notice as we reasonably can.

11.2 Porting out: if you want to keep a Number after the Agreement ends, tell us before it ends and we will cooperate with a request to port it to another provider where our provider and the receiving provider allow it. We don't charge for this, but please ask at least 14 days before the Agreement ends; the receiving provider may charge.

11.3 When the Agreement ends, no texts, alerts or AI are sent. Any calls still diverted from your mobile to your Number hear "Sorry, {your business} can't take your call right now. Please try again later.", so you must remove your call diverts (dial ##61#, ##67# and ##62#, or ##002# and then turn your normal voicemail back on). If you have published your Number because your phone cannot divert, calls to it are put through to your mobile for 30 days so you can update your listings; after that it stops working and may be released.

11.4 Call divert codes are set on your own mobile and are controlled by your mobile network. We cannot guarantee that every network or tariff supports them, and your network may charge for diverted calls.

12. WhatsApp and third-party services

12.1 We use these Third-Party Providers to deliver the Service: Twilio (phone numbers, calls, voicemail, texts and WhatsApp messaging); Meta Platforms (WhatsApp); Anthropic (AI text replies); Stripe (payments); Supabase (database); Cloudflare (application and website hosting); and Resend (alert and report emails). The full list, with what each does, is in Schedule 2.

12.2 The Service depends on these providers. We are not responsible for their acts, omissions, outages or changes to their services, prices or terms, but we will use reasonable endeavours to minimise the effect on you. We may replace a provider with another offering similar protection (see Schedule 2 for notice of new sub-processors).

12.3 You agree to comply with any third-party terms that apply to your use of the Service and that we bring to your attention, including Twilio's Acceptable Use Policy and the WhatsApp Business Terms of Service and WhatsApp Business Messaging Policy.

12.4 WhatsApp: unless you ask us to move your existing WhatsApp number, WhatsApp enquiries are received on a Never Miss a Lead number that we register as your business's WhatsApp account, with your WhatsApp Business profile. Your existing WhatsApp app and number are not affected. Your WhatsApp display name must match your business name; changes go through us and WhatsApp limits them to one every 30 days. Callers may see the number rather than your business name unless Meta grants your business an Official Business Account, which we cannot guarantee. If, at your request, we move your existing number to the Service, you will no longer be able to use the WhatsApp app with that number.

12.5 WhatsApp only allows free-form replies within 24 hours of the Caller's last WhatsApp message. After that, replies are sent as texts where the Caller has a UK mobile number, or cannot be sent. The Service does not send WhatsApp template messages. Meta may suspend, restrict or refuse a WhatsApp account at its discretion; WhatsApp availability is not guaranteed.

12.6 Fair use: if your phone cannot divert calls and you use a Never Miss a Lead number on your website, profiles or ads, the Service includes up to 225 minutes a month of calls put through to you from that number. Once that is used, until the 1st of the next month, calls to that number are not put through to you: callers hear your greeting and can leave a voicemail, and callers on a mobile get your text, so you

still receive every lead in the Dashboard. We will tell you when this happens. If you regularly need more, we will talk to you about a change of plan or price.

12.7 Fair use: the Service includes up to 500 new WhatsApp enquiries (new WhatsApp conversations) a month. If you are regularly above that, we will talk to you about it first, for example about a change of plan or price. We never block enquiries because of this limit.

12.8 The WhatsApp Business Account is registered in your own Meta Business Portfolio, with Big Bark Media added as a partner or administrator, and you will give us the access we reasonably need to set it up and run it.

13. AI features

13.1 Your plan includes AI features: an AI assistant that replies to Callers' texts and WhatsApp messages. The AI is instructed to use only the business information you provide in the Dashboard and to hand anything else to you, not to give advice, and to hand conversations to you in defined cases. Any price it gives is followed by a statement that you will confirm it.

13.2 The AI identifies itself as automated: its first text in a conversation starts "{your business} (automated assistant):", and it does not claim to be a person. A Caller can reply HUMAN (or ask for a person) at any time; the AI then stops on that conversation and you are alerted.

13.3 AI can make mistakes. It may misunderstand a Caller, give an incomplete or inaccurate answer, or fail to hand over when it should. AI output is not professional, veterinary, behavioural, legal or any other advice, from you or from us. You remain responsible for your dealings with your customers, and you should check AI replies and correct anything that is wrong.

13.4 You can pause AI text replies on any conversation, and switch them off entirely, in the Dashboard. The AI pauses itself on a conversation when you reply through the Dashboard or by #code text, when it hands over to you, and when a Caller appears to ask not to be contacted.

13.5 Fair use of AI text replies: to keep costs and risks reasonable, AI text replies are limited to 30 per business per day, 4 per conversation per day and 500 per business per month. We email you when you reach 80% of the monthly limit. When a limit is reached the AI stops and the conversation is handed to you. If an AI feature is unavailable, the rest of the Service continues and you are still alerted.

13.6 Caller messages are processed by our AI provider to produce replies as described in Schedule 2. We use providers whose commercial terms state that this data is not used to train their models; they keep it only for a limited period.

14. Data protection

14.1 For the personal data of Callers processed through the Service, you are the controller and we are your processor. Schedule 2 (Data Processing) forms part of this Agreement and sets out our obligations as processor, in line with Article 28 of the UK GDPR.

14.2 Each party will comply with the Data Protection Legislation (UK GDPR, the Data Protection Act 2018 and PECR). For your own contact and billing details, we are the controller and handle them as described in our privacy notice at nevermiss.bigbark.media/privacy.html.

14.3 Message contents (including photos and other files Callers send) and voicemail recordings are deleted automatically 365 days after they were created. A basic log of calls (number, time, duration and outcome) is kept while you are a client, for billing and support. Opt-out records are kept for as long as needed to honour them. Billing records are kept as the law requires.

14.4 We may use anonymised and aggregated information about use of the Service (which does not identify you or any Caller) to run and improve the Service.

15. Confidentiality

15.1 Each party will keep confidential the other's confidential information received under this Agreement and use it only to perform or receive the Service, except where disclosure is required by law, to its professional advisers, or (for us) to our Third-Party Providers as needed to provide the Service. This clause continues after the Agreement ends.

16. Intellectual property

16.1 We (and our licensors) own the Service, the Dashboard, the website button code and all related software and materials. We grant you a non-exclusive, non-transferable right to use them for your business while this Agreement continues.

16.2 You own your business information, your wording and your customers' messages. You give us permission to use them only as needed to provide the Service.

16.3 You may add the website button code to websites you control that we have approved for your account.

17. Service levels and support

17.1 We will use reasonable endeavours to keep the Service available and to fix faults promptly. We do not guarantee that the Service will be uninterrupted, error-free or available at any particular time, or that every text, alert, call or message will be delivered, because the Service depends on mobile networks, the internet and Third-Party Providers.

17.2 Support is provided by email (info@bigbark.media) and WhatsApp (07822 882162) only, during 9am to 4pm, Monday to Friday, excluding bank holidays. We do not provide support by phone, and we do not hold calls or meetings to set up the Service; our written guides and setup videos (at nevermiss.bigbark.media/setup/) cover setup. We aim to reply within 3 Business Days. Out of hours, the Service carries on as normal.

17.3 We may carry out planned maintenance, and will try to do it at quiet times. The Service is designed so that, where possible, calls still reach you if other parts of it are unavailable.

18. Suspension, including for non-payment

18.1 If a payment is not made when due, the Service continues as normal for 7 days. If the payment is still outstanding after 7 days, we may restrict the Service until it is paid. While the Service is restricted:

(a) your phone still rings as normal; Callers whose calls are diverted to the Service can still leave a voicemail, which is stored and notified to you by email; and calls to a published Number are still put through to your mobile;

(b) no automatic texts, text alerts, AI replies or website-form texts are sent, and replies from the Dashboard or by #code are paused.

18.2 The full Service resumes automatically once the overdue amount is paid. If an amount remains unpaid for 30 days after it was due, we may end this Agreement under clause 20.

18.3 We may also suspend all or part of the Service immediately if we reasonably believe it is being used in breach of clause 9 or 10, if a Third-Party Provider or regulator requires it, or to protect the security of the Service. We will tell you as soon as we reasonably can and restore the Service when the reason has been resolved.

19. Liability

19.1 Nothing in this Agreement limits or excludes liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot be limited or excluded by law.

19.2 Subject to clause 19.1, neither party is liable to the other for any loss of profits, revenue, business, customers, enquiries or bookings, loss of goodwill, or any indirect or consequential loss, however

arising.

19.3 Subject to clause 19.1, our total liability to you arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is limited to the total Fees you paid to us under this Agreement in the 12 months before the event giving rise to the claim.

19.4 We are not liable for: the acts or omissions of Third-Party Providers or mobile networks; messages or calls that are not delivered for reasons outside our reasonable control; your call divert settings; content you provide; the content of AI-generated replies, transcripts or summaries where we have provided the AI features in line with this Agreement; or your failure to respond to enquiries.

19.5 You will compensate us for any reasonable losses, fines and costs we incur because of a claim that your use of the Service breached clause 9 or 10, or the law (including PECR), except to the extent caused by our breach of this Agreement.

19.6 Neither party is liable for delay or failure caused by events beyond its reasonable control (for example network or power failures, failures of Third-Party Providers, or acts of government), provided it tells the other party and takes reasonable steps to limit the effect.

20. Ending this Agreement

20.1 Either party may end this Agreement immediately by written notice if the other:

(a) commits a material breach that cannot be remedied, or does not remedy a remediable material breach within 14 days of being asked to;

(b) becomes insolvent, enters administration or liquidation, makes an arrangement with creditors, or stops trading.

20.2 We may also end this Agreement immediately by written notice if any Fees remain unpaid 30 days after they were due, or if you seriously or repeatedly breach clause 9 or 10.

20.3 You can also cancel at any time under clause 6.3.

21. What happens when this Agreement ends

21.1 The Service stops, except as set out in clause 11.3. Your Dashboard access ends.

21.2 30 days after the end, we email you an export of your conversations, messages and call records that are still held (as CSV files), and then delete Caller personal data as set out in Schedule 2. Billing, usage and opt-out records are kept as clause 14.3 and the law require.

21.3 Any Fees due up to the end date remain payable. Clauses that by their nature continue (including 14, 15, 19 and this clause) survive.

22. General

22.1 Notices must be in writing and sent by email: to us at info@bigbark.media, and to you at the email address you gave us at sign-up (or another address either party notifies).

22.2 You may not transfer this Agreement without our written consent. We may transfer it to a company that takes over the Service or our business, provided your rights are not reduced. We may use subcontractors and Third-Party Providers but remain responsible for them as set out in this Agreement.

22.3 This Agreement is the entire agreement between us about the Service and replaces any earlier discussions. Each party confirms it has not relied on any statement not set out in this Agreement, but nothing limits liability for fraud.

22.4 No one other than the parties has any right to enforce this Agreement under the Contracts (Rights of Third Parties) Act 1999.

22.5 If any part of this Agreement is found invalid or unenforceable, the rest continues in force. A delay in exercising a right is not a waiver of it.

22.6 Except as set out in clause 7, changes to this Agreement must be agreed in writing (email is enough).

23. Governing law and jurisdiction

23.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it are governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.

23.2 Before starting court proceedings (except for urgent relief or to recover unpaid Fees), each party will try in good faith to resolve the dispute by discussion for at least 14 days.

Acceptance

You accept this Agreement by starting a subscription or free trial for the Service (clause 2). Signing below is optional, for businesses that prefer a signed copy.

For the Client	For Ogilvie Dogs Ltd
Signature	Signature
Name and position	Name and position (Director)
Date	Date

Schedule 1: Plan Schedule (Smart Text)

Plan	Never Miss a Lead Smart Text
Monthly price	£99 per month including VAT, billed monthly in advance
Big Bark hosting-client price	£79 per month including VAT, while Big Bark Media hosts your website (clause 5.4)
Annual option	£990 per year including VAT, billed yearly in advance (equivalent to 2 months free); set up on request
Free trial	14 days from the day your Number goes live; card required, no setup fee; reminder email about 3 days before it ends; not charged if cancelled before it ends
Setup fee (no trial)	£99 one-off including VAT, if you choose to start without a trial
VAT	All prices include VAT. VAT number GB385496934
Minimum term	None. Rolling monthly; cancel any time in the Dashboard or by email or WhatsApp, effective at the end of the paid billing period (clause 6)
Pause	Monthly plans: 1, 2 or 3 months, free, once in any rolling 12 months, in the Dashboard; not during a Trial (clauses 6.6 and 6.7)

What's included

Feature	Details and limits
Number	Your Never Miss a Lead number (a UK number provided through Twilio). Your mobile diverts calls you do not answer, calls when you are busy and calls when your phone is off or has no signal to it; calls you answer never reach the Service.
If your phone cannot divert	You may publish your Number instead (for example on your website and Google profile). Calls to it ring your mobile first (12 seconds by default, adjustable from 8 to 30 in the Dashboard); you hear "Never Miss a Lead call. Press 1 to take it." and press 1 to take the call; otherwise it is handled as a missed call.
Missed-call handling	greeting (up to 300 characters; the default says messages are recorded, and a custom greeting must too) and voicemail (up to 2 minutes per message).
Automatic text	Sent to callers on UK mobile numbers who have not opted out, at most once per caller every 30 minutes. Your wording, up to 300 characters, must include your business name and the STOP opt-out.
Alerts	By text to your registered mobile and/or email, and by phone notification on devices you turn them on for. Text alerts for replies: at most one per conversation every 10 minutes. Every opt-out is alerted to you. WhatsApp enquiry alerts go by email unless you choose text or both (texts at most once per WhatsApp conversation a day).

Feature	Details and limits
Dashboard	Inbox (including photos, voice notes and files Callers send by WhatsApp or as picture messages), replies (up to 1,000 characters), calls and voicemail, results, settings, and a link to the Stripe billing page (update card, invoices, cancel), at my.bigbark.media.
Reply by text	#code replies from your registered mobile number to open conversations.
Website button	“WhatsApp us” button (opens a WhatsApp chat, tagged with the ad the visitor came from) with a small “Text us” form beside it for approved websites; installed by us on websites we host; texts to UK mobiles only; up to 5 messages per visitor per hour and 50 per business per day.
Monthly report	Emailed on the 1st of each month.
AI text replies	Replies to callers’ texts, WhatsApp messages and website enquiries using your business information (up to 4,000 characters). Up to 30 AI replies per business per day, 4 per conversation per day and 500 per month (fair use); up to about 300 characters per reply. The first AI text says it is an automated assistant; Callers can reply HUMAN to reach you.
WhatsApp	Optional; subject to Meta approval. Click-to-WhatsApp ads (Meta) and website WhatsApp links (Google ads tagged “(ref G)”) show which ad each chat came from. Free-form replies within 24 hours of the caller’s last WhatsApp message; no template messages. Fair use: up to 500 new WhatsApp enquiries a month; we talk to you first if you are regularly above that and never block enquiries.
Data retention	Message contents, voicemails, AI transcripts and summaries are deleted after 12 months. We keep a basic log of calls (number, time, outcome) while you’re a client, for billing and support.
Support	By email (info@bigbark.media) and WhatsApp (07822 882162) only; written guides and setup videos at nevermiss.bigbark.media/setup/. No phone support.
After cancellation	Takes effect at the end of the paid billing period. Diverted calls hear “Sorry, {your business} can’t take your call right now. Please try again later.”, so remove your diverts; a published Number keeps putting calls through for 30 days (clause 11.3). 30 days after the end we email your data (CSV) and delete Caller data.

Not included on this plan: the AI voice receptionist (available on the AI Receptionist plan).

Schedule 2: Data Processing

This Schedule summarises and incorporates the Never Miss a Lead Data Processing Agreement (version 1.0, 20 October 2026), which applies in full and is available on request. If there is any conflict, the Data Processing Agreement prevails.

1. **Roles.** You are the controller and Big Bark Media is the processor of Caller personal data. You are responsible for having a lawful basis and giving Callers the required information, including by adding the privacy wording we supply to your privacy policy.
2. **Instructions.** We process Caller personal data only on your documented instructions (this Agreement and your Dashboard settings), unless UK law requires otherwise, and will tell you if we think an instruction breaks data protection law.
3. **Confidentiality and security.** Everyone authorised to process the data is bound by confidentiality. We apply the security measures below.
4. **Sub-processors.** You authorise the sub-processors listed below. We will give you at least 14 days' email notice of any new or replacement sub-processor; you may object on reasonable data protection grounds and, if we cannot resolve it, end the Service without penalty. We put written contracts in place with each sub-processor and remain responsible for them.
5. **International transfers.** We transfer data outside the UK only under a lawful transfer mechanism (such as UK adequacy regulations, the UK International Data Transfer Agreement or the UK Addendum). For US providers certified under the UK Extension to the EU-US Data Privacy Framework we rely on the UK-US data bridge; for others, on the UK International Data Transfer Addendum in our contract with them.
6. **Assistance.** We will help you respond to requests from individuals (access, correction, deletion, objection) and pass any request we receive to you without undue delay, and help you with security, breach notification, impact assessments and ICO consultation, taking into account the information available to us.
7. **Breaches.** We will notify you without undue delay, and in any case within 48 hours, after becoming aware of a personal data breach affecting your data.
8. **End of the Service.** At your choice we will delete or return the data within 30 days, and delete existing copies unless UK law requires us to keep them.
9. **Audits.** We will make available the information needed to show compliance and allow reasonable audits on at least 30 days' notice, no more than once a year unless there has been a breach.
10. **Your obligations.** Your instructions must comply with data protection law; you will only send, or have us send, replies to people who contacted you and no marketing; keep Dashboard access secure; and not put special category data into the AI business information.

Details of the processing

Subject matter	Answering, logging and following up your missed calls, texts, WhatsApp messages and website enquiries.
Duration	For the term of the Service, then deletion or return as above.
Nature and purpose	Receiving and routing calls; recording voicemails; sending automatic and manual replies; generating AI text replies; storing and showing media Callers send; alerting you; showing conversations and statistics in your Dashboard; billing usage.
Data subjects	People who call, text, WhatsApp or use the website form to contact you; your staff who use the Dashboard.

Personal data	Phone numbers; names and details Callers give; message contents, including photos, voice notes and other files Callers send; voicemail recordings; call times, durations and outcomes; opt-out status; website-form consent times; Dashboard users' names and email addresses.
Special category data	Not intended. Callers may occasionally volunteer it; you must not instruct its collection.
Retention	Message contents (including media), voicemail recordings deleted after 365 days. A basic call log (number, time, duration, outcome) kept while you are a client. Opt-out records kept as long as needed to honour them. Billing records as required by law. Caller data deleted 30 days after the Service ends, after we email you an export.

Authorised sub-processors

Sub-processor	What it does	Location of processing
Twilio Ireland Ltd / Twilio Inc.	Phone numbers, calls, voicemail recordings, texts and picture messages (including storage of media Callers send), WhatsApp messaging	United States and EU (Ireland)
Meta Platforms Ireland Ltd (WhatsApp)	WhatsApp message delivery, where you use WhatsApp	EU (Ireland) and United States
Anthropic PBC	AI text replies	United States
Supabase Inc.	Database hosting	UK (London region)
Cloudflare Inc.	Application and website hosting	Global network, including the United States
Resend (Plus Five Five Inc.)	Alert and monthly report emails	United States
Stripe Payments Europe Ltd	Billing and the self-service billing page (your data, not Callers')	EU (Ireland) and United States

Security measures

- All traffic encrypted in transit (HTTPS/TLS); database encrypted at rest by the hosting provider.
- Database access only through the application using a secret service key; row-level security with no public access.
- Dashboard sign-in by a one-time 6-digit email code (or email link); no passwords; each user sees only their own business's data; Big Bark Media admin access limited to named staff.
- Signatures checked on every request from Twilio, Stripe; phone numbers masked in application logs; secrets kept in the hosting provider's secret store.
- Voicemail recordings and Caller media fetched through the application (signed links that expire after 1 hour) and never exposed by direct provider link.
- Automatic deletion after the retention period; opt-outs honoured automatically; rate limits and spam protection on the website form; audit log of administrative changes.